

Micky Smart Short Note Center

Civil Procedure Short Note Part I

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Chapter One

Introduction to Civil Procedure: Conceptual and Historical Background

Substantive Vs Procedural Laws: Significance

What are the major classification of laws?

- ✓ A broad distinction of law *are substantive and adjective legal rules.*
- ✓ Adjective rules are, in turn, *subdivided into procedural and evidence* laws with the former constituting the major portion of it. The law of evidence, which governs the method of proof of allegations or assertions of parties to a case.

What are substantive laws?

- ✓ Laws that define rights, duties, privileges and liabilities of persons and set out regulatory norms for their mutual relations in their ordinary course of life.
- ✓ *Seek to avoid disputes between and among individuals and groups in a society.* They intend to achieve this by;
 - a) carefully delimiting their respective legal spheres;
 - b) by, primarily, predefining their rights and the corresponding duties

What are procedural laws?

- ✓ Procedural laws are, comparatively speaking, *means to the end contemplated by substantive laws.*
- ✓ *Thus, prescription without application is nothing but pretence. This means that the rights and duties envisaged by the laws would mean nothing unless they are fully enforced.*
- ✓ In a nutshell, one may comfortably conclude that procedural rules, in essence, give effect (“life”) to the ends sought to be achieved by substantive laws.

What issues are regulated by procedural laws?

- ✓ The function of procedural rules, to which civil procedure belongs are;
 - ✚ to govern as to how claims of persons are prepared;
 - ✚ where and when presented; and,
 - ✚ How determined and finally enforced by a court of law.

Is there a clear demarcation between substantive and procedural laws?

- ✓ *As a matter of fact, it is not, more often than one would expect that easy to readily put, with definitive precision, a particular legal rule to either of the categories.*

For instance in Ethiopian case;

a) **Art 1856(2) of the Civil Code prescribes that a court dealing with a given case shall not have regard to period of limitations unless it is pleaded by the parties;**

✚ it is substantive because found in Ethiopian civil code (a substantive law of Ethiopia) and

✚ At the same time it is procedural law. Since the rule is actually setting forth a guideline for the court as to how it should go about dealing with issues of period of limitation in relation to judicial proceedings

b) **Art 1845 of the same Code provides the right to institute any legal action for the performance; on the non-performance or for the sake of invalidation of the contract, shall be barred, as a rule, unless brought within 10 (ten) years from the time the period started.**

✚ It is substantive because, is embodied in the Civil Code, the major constituent body of substantive rules. Besides, it is prescribing a condition in relation to the contractual right of a party, the exercise of which is made to depend.

✚ At the same time it is procedural. Since the rule, unarguably, demarcates the time limit within and before which a contract related action should or could be lodged in a court of law. In so doing it, in essence, determines the time as to when one would not be able to make use of his right

If so, what are the essential methods of identifying procedural law from substantive law?

✓ There are three techniques to this effect;

a. **Look at the material source;** i.e., the constituent document of the rule under consideration. This means, rules of civil procedure, for instance, are primarily and substantially embodied in the Civil Procedure Code and, Whereas rules of substantive laws are predominantly incorporated in such substantive codes as the 'Civil' and 'Commercial' they are secondarily, found in some other laws relating to civil matters.

b. **Look the contents (purposes) and the functional correlations between them:** it is;

✚ The rules of substantive laws contents is granting the rights and duties of individuals and groups; and, by regulating their interactions at various levels of relations. **But, procedural laws are fundamentally meant to deal with the manners of framing law suits; determining their place of institutions; and, governing the way they are to be considered and finally enforced by the courts of law.**

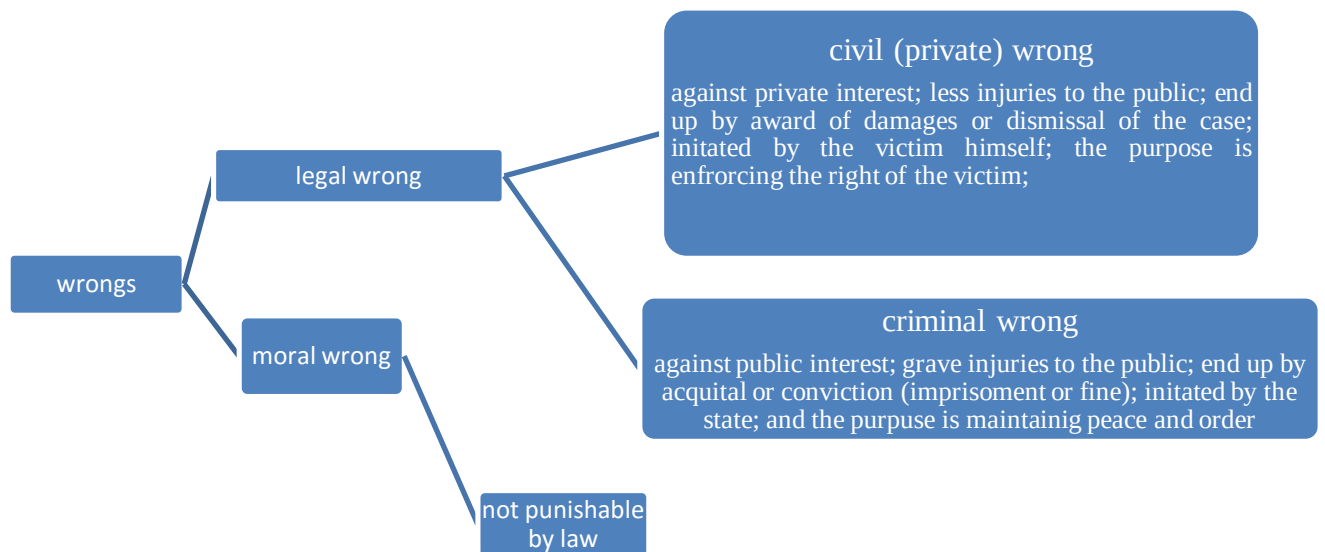
✚ Their functional relation is one is the means to an end.

- c. **Look the actual functions of the two classes of laws vis- a-vis their respective spheres of applications;** *procedural laws (law in action or motion) governs the relation between legal actors and parties to the case inside the court, where as substantive laws (law of the rest) is applicable even outside the court.*

Civil Vs Criminal Procedures: Scope of Application

What are the grounds to classify laws in to criminal and civil law?

- ✓ Laws may also be classified into ‘civil’ and ‘criminal’ based on the following grounds;
- the purposes and the ultimate objectives underlying their very establishment
 - the types of relationships they chiefly govern;
 - the nature of the legal interests that would be affected at their violations and, hence, the parties who would have sufficient stake therein so as to invoke a justiciable controversy,



What are the jurisprudential grounds of establishing civil and criminal liabilities?

- Civil liability or remedial liability:** is found in the legal maxim “*ubi jus ibi remedium*”, which means, **where there is a right, there must be a remedy** –taking into consideration **the bare act irrespective of the intention of the wrongdoer.**
- Criminal or penal liability:** the fundamental rule underlying penal liability is contained in the jural dictum “*actus non facit reum, nisi mens sit rea*”; which means that **a mere act does not amount to crime unless it is accompanied by guilty mind.** Thus, criminal

liability invariably requires moral guilt (intention or negligence), plus, personal act or forbearance.

What are the common parameters to differentiate civil cases from criminal cases?

- ✓ With a view to differentiating civil cases from criminal ones, three parameters, inherently based on the jurisprudential background of the two areas of laws discussed above, are commonly employed;

A. The nature of the parties instituting the legal action: *A civil case is naturally initiated by a private person claiming redress for some wrong alleged to have been committed against him by another.*

Accordingly, parties involved in a civil case can appear in either of the following ways:

- “A physical person against another physical person”; or,
- “A physical person against a legal person “, or,
- “A legal person against another legal person”.

Is there any possibilities that the government involved in the civil case as a legal person?

- ✓ *Yes; the government may initiate a legal action and be a party to a civil case. This occurs when it acts in and exercise its private capacity.*

What are the private capacity of acts by the government?

- ✓ *A government is said to have acted in its private capacity when it engages in matters typically undertaken by individuals.*
- ✓ *Such is the case when, for instance, it runs business transactions, essentially for the purposes of deriving profit from such commercial activities.*

If so, does it mean the act of the government at public capacity cannot be raised in civil proceedings?

- ✓ *Yes; the public aspect, the functions of a government are, predominantly, dispensing justice; defending the state and its population from foreign aggression; maintaining domestic peace and order; regulating social, economic and political activities; and levying and collecting taxes to finance these activities.*

Is there any possibilities whereby individual vs individuals are involved in the criminal case?

- ✓ **Yes;** *in criminal cases, although, the parties are commonly the state (represented by the public prosecutor, usually, in place of the plaintiff) and an individual suspect (defendant) – who has allegedly committed a penal offence;*
- ✓ *The exception is ‘offences upon complaints’ -as the law calls them. That is why, a criminal case is generally considered to be one not between the individual victim (and / or his relatives) and the alleged offender as such, but, a matter between the state and the offender.*

B. Purpose of initiating a law suit and the nature of the relief sought: thereby is the other yardstick used to make a distinction between civil and criminal cases.

- i. **Civil case:** *The relief demanded in a civil case is mostly the payment of money or is usually to be assessed in monetary values. In some exceptional civil cases, however, the following punishment are imposed;*
 - ✚ **Specific relief (personal performance)** or forced performance of legal obligations, such as, restitution or delivery of goods or an injunction
 - ✚ **Detention:** when one, who either refuses to furnish security for appearance-while the case is pending- (Arts 147-150);or, fails, without good cause, to satisfy a decree(Art 389), may exceptionally be detained in a civil prison for a period not exceeding six months.
- ii. **Criminal case:** *the overall purposes and aims for initiating a criminal case is the maintenance of peace and order of the general public by, primarily, punishing the law breaker. End up on the loss of liberty (as in imprisonment) or deprivation of life (as in capital punishment) and fine.*

C. Availability of alternative dispute settling mechanism:

- i. **Civil case:** *civil cases are subject to negotiations; and, hence, a compromise could be reached upon independently between the parties themselves. This, by implication, means that the parties are not under legal obligations to bring their civil disputes before a court of law and have them disposed of. They, rather, bring them to the attention of a legal tribunal if and when they fail to settle their disputes peacefully as between themselves.*

At this juncture, however, one must take note of the fact that a certain single act may give rise to both a civil and a criminal case whereby the parties are at liberty to negotiate over the civil aspect of the matter.

Moreover, the parties are at liberty to negotiate over their disputes even while the case is still pending; and have it withdrawn from the court any time, but before a final judgment is rendered.

- ii. **Criminal Cases:** *are not subject to such ADR. This means, the matter lies exclusively within and is done under the power of the prosecution officers irrespective of the negotiations and the agreement that may be made between the victim and the offender; unless, of course, the case falls within the category of 'offences upon complaint'.*

The Purpose of Civil Procedure Vis-à-vis Fundamental Procedural Rules

What is the fundamental purposes of civil procedural law?

- ✓ Procedure aim to ensure that disputes are *handled by an impartial legal tribunal in a fair and orderly manner and as expeditiously and economically as possible.*
- ✓ They are, *in brief, meant to secure the just, speedy and inexpensive disposition of cases.*
- ✓ More specifically; *they aim at treating the parties to a law suit equally in enforcing their rights and the corresponding duties and laying down the ground for a smooth and orderly flow of litigation so as to make the decision within a reasonably fair and quick time.*

What are the rationales for granting expeditious justice?

- ✓ It is based on the known proverb, *'justice delayed is justice denied', and it is also equally true that 'justice rushed is justice crushed!'*
- ✓ *Meaning, sketchy judgments rendered at the expense of justice in a manner that obstructs or destroys justice itself would amount to a miscarriage of justice potentially jeopardizing the administration of justice.*

What are the essential factors that should be taken in order to measure the speedy justice?

- ✓ depends on a number of factors; such as,
 - ✚ The number and nature (complexity) of filed cases Vis-à-vis the number of the courts (benches) engaged in the business; and,
 - ✚ The number of the judges (justice officials) operating therein; as well as the degree of compliance with the governing rules and case flow management techniques.

What are the major criticisms on Ethiopian civil procedure in general?

- ✓ Talking of the practical implementation of the rules of Civil Procedure Code, there have always been irrefutable criticisms in the law per se and in the practice, so two arguments are prevalent;
 - a. **The defect of the procedure (law) per se:** the proponents provided the grievances that; *It is better to be sued and stand as a defendant in our courts than claiming one's right through them as a plaintiff*". it is due to;
 - ✚ indeterminable number and complexities of the procedural steps followed in the litigation process;
 - ✚ lack of procedural transparency;
 - ✚ the great uncertainty of the governing rules and
 - ✚ The irreconcilably divergent inconsistencies in the application of the law.
 - b. **The defect on the practice not on the law:** even though there are tolerable gapes on the law, the major problems are related with the practice due to;
 - ✚ Self-imposed, deep -rooted and rampant customary practices which are repugnant to and observably inconsistent with the dictates of the existing law. (e.g both a torture to write and a torture to read" ,
 - ✚ Neither the litigants worry themselves of complying with the prescription of the law in preparing their pleadings; nor, sadly enough, the court officials are seriously engaged in and bother themselves of ensuring the formal sufficiency of the pleadings as they seem comfortable with (and, hence, evidently complicit in) the bad practices.
 - ✚ No tradition of managing law suits separately Vis-à-vis their specific natures. Cases, which need summary or accelerated procedures, from cases that is to be entertained in the ordinary procedures.

Fundamental principles and procedures (Both in criminal and civil proceedings)

What is the effects of failure to comply such rules?

- ✓ *Failure to comply with them, in principle, vitiates a decision and discredit the judgment as lopsided so as to constitute a miscarriage of justice.*

What are the fundamental principles?

- ✓ they are;

A. Fair Hearing of a Suit/Impartiality of the Courts

- ✓ There are certain factors against which impartiality of courts is evaluated or through which “fair hearing of a suit” is ensured. The following are the major ones.

I. Neutrality of the Presiding Judge:

What does impartiality mean?

- ✓ *Any person who sits in judgment over the interests of others must be able to bear an impartial and objective mind to the question in the controversy; i.e. he/ she should impart justice without fear or favor.*
- ✓ *That is, the authority empowered to decide dispute between opposing parties must be one free from bias-by which is meant an operative prejudice ; i.e., predisposition towards one party or against the other without proper regard to the true merits of the case.*

What are the forms of impartiality?

- ✓ There are two attributive features of impartiality. The first feature is
 - Subjective impartiality:**, which refers to the impartiality of the **judge** himself and
 - Objective impartiality:** of the tribunal; i.e., **the tribunal/ court** or bench should provide the public with the guarantee that it operates impartially; i.e., conditions that avoids suspicions of impartiality.

What are the possible grounds that disqualify the judge from entertaining the case?

- ✓ Basically two broad categories;
 - Personal Bias:** *It usually arises from friendship, relationship (either personal or professional) or hostility or animosity against either of the parties; or, negativity from personal prejudices; or even political rivalry.*
 - Pecuniary Bias/ Bias as to the Subject- Matter:** *it arises from monetary interests in the subject matter of the dispute, no matter how small or insignificant it might be. The rule against pecuniary bias originates from the legal maxim: “nemo judex in cause sua”, implying that no one should be a judge in his own case; and*

What is the effect of personal or pecuniary bias?

Thus, the requirement of the rule against bias (whose observance is recommended in the name of impartiality) goes to the extent of imposing the duty upon the presiding judges to withdraw themselves from the proceedings where it causes (or, appears to cause) the violation of the rule (see, for instance, Art 27 of Proc No 25/1996).

II. **Right to be Heard: Nobody should be condemned unheard!**

What is the rationale behind granting this right?

- ✓ The governing maxim in this case runs: *'audi alter am par tem'*; meaning **'Hear the other side'** – nobody should be condemned unheard.

What are the elements of the right to be heard?

- ✓ Any one against whom an action is taken or whose right or interest is, is granted two essential rights;
 - a. **Notice** has to be given to the party before the proceedings start and,
 - b. A party has to be given an **adequate and reasonable (effective) opportunity to explain (hearing)**.
- ✓ A party should also have the opportunity to adduce all relevant evidence on which he relies and opportunity for rebuttal of evidence submitted against him.

III. **Equality of Treatment Everyone is prima-facie equal before the law**

- ✓ This principle *implies equal subjection of all persons to the ordinary laws of the land as administered by the regular courts of law; and, law extends protection to everyone.*

What are the indicators of equality in procedure?

- ✓ there are three fundamental pillars used as ultimate test of procedural fairness (equality) i.e., **sine qua non for even, handed dispensation of justice:**
 - a. **Equipage Equality:** *This implies equality between the litigants in preparing their respective pleadings in getting legal aids (services) in searching for evidence etc, irrespective of their differences in income levels.*
 - b. **Rule Equality:** *each party should be subjected to and protected by, similar rules. Same issues should be resolved through similar legal rules. If, for instance, by virtue of Art 58 (a) of the Cv. Pr. Cd, representation is allowed for a 'brother', the same rule should apply for a 'sister's' representation-though not expressly articulated therein.*
 - c. **Outcome Equality:** *Similar issues, under same grounds /circumstances, should have similar outcomes for example instance, in such instances wherein 'class action' is allowed-pursuant to Art 38 of the Cv. Pr. Cd. Generally, speaking like cases should be treated alike.*

IV. **Public Hearing of a Suit** (*Justice must not only be done but must also be seen being done*)

- ✓ *In principle when the court undertakes a hearing, the public at large, must have access to the litigation process (court-room) without, of course, negating exceptional situations of inherently confidential nature-wherein courts may consider cases in a closed chamber (“in Camera”).*
- ✓ *Accessibility to the media-which serves as a bridge between the two-is another important aspect of transparency acceptability and reliability (credibility). see art 12 FDRE Constitution*

V. Independence of the Judiciary and Accountability of the Judges

A. Judicial Independence

What are the forms of judicial independence?

- ✓ It is ensured through and possesses dual facets: institutional and personal/functional.
 - a. **Institutional Independence:** the freeing of the judiciary from an **unwarranted encroachment or influence** of any sort, particularly, from the executive wing or official of the government.

How institutional independence can be ensured?

- ✓ Institutional independence of the judiciary is essentially ensured through the following means;
 - i. **Legal Basis:** *So as to firmly establish institutional independence of the judiciary, there has to be a legal stipulation to that effect-it has to be legally declared. (See, for instance, Arts 78&79 of the FDRE Constitution.)*
 - ii. **Independence to Administer Internal Affairs:** *Formally speaking, however, it was only Proc.No.323/1975 which marked the ever first move for the institutional independence of the judiciary; at least, in theory.*

How it can be ensured?

- ✓ Most importantly, ensured when to control their internal affair which include:
 - ⇒ **Financial control:** the power of drawing up and implementing the administrative budge and
 - ⇒ **Management of its personnel** (See, Art 79 (6) of the FDRE Constitution and Art 16. of Proc .No.25/96) : and,
 - ⇒ **Appointments of Judges:** are appointed in such a way that guarantees their independence

- ⇒ **Enjoyment of a secured tenure:** of office; i.e., up until the retirement age); and, their removal from their judicial duty is made in due process as sanctioned by law and in restrictive grounds so prescribed
- ⇒ **defined rules on training and promotional opportunities** of the judges; their transfers; decisions on disciplinary measures; suspension or removal from their duty etc before reaching the legally mandated term of office,

b. **Functional/Personal Independence**

- ✓ *It is a functional or individual independence-which could either be internal or external.*
 - i. **Internal:** *This means that, in the process of discharging their judicial tasks, judges should be free, internally, from their own colleagues and/or from the influence of superior courts;*
 - ii. **External:** *free from any kind of outside intrusion, fear or influence; and they should solely be bound and guided by the law.* Moreover, they should not be subject to and held liable to any administrative measures for the sole fact of their judicial decisions which may be inconsistent with the needs and interests of officials.

B. Accountability of the Judges

- ✓ *Independence should not be left without restraint, there has to be credible means of safeguarding those cherished human values.*
- ✓ *Independence does not mean and should not lead to irresponsibility and arbitrariness. It should not be manipulated as an incentive for laziness, corrupt motives, or for a tremendous degree of discretion so as to end up in the 'rule of the judges'.*
- ✓ *Thus, judges are to be held responsible for their decisions. In other words, they are not allowed to act as free riders.*

VI. **Establishment of Courts by Law**

For who judicial power should be granted?

- ✓ *The structures of the courts; their hierarchical relations and their comparable jurisdictions have to be explicitly constituted by law; and, only courts so established can assume judicial function.*
- ✓ *On the other hand, inherent in this premise is that special or temporary bodies that take away judicial powers from regular courts; and by and large, do not follow procedures*

prescribed by law ought not to be set up. Judicial power should principally and solely be vested in the regular courts.

Does it mean administrative tribunals does not have any adjudication power?

- ✓ *This, of course, is without negating the existence of the so-called ‘administrative tribunals’- which are constituted by law and entrusted with some quasi-judicial (delegated) power-as the present day compelling necessity of the proper dispensation of justice so demands. .*

If so what are the major rationales for establishing administrative tribunals?

- ✓ The reason d’etre that led to the creation of these bodies include:
 - a) **Cheaper justice** : it is less expensive to get justice through this process
 - b) **Speedy justice**: It abandons the intricate (and stringent) procedures and
 - c) **Well-trained personal**; individuals possessing special experience in a particular field.

Does administrative courts has a constitutional establishment in Ethiopia?

- ✓ the FDRE Constitution provided that: *‘ad hoc’ or ‘special’ courts outside the regular court system are prohibited; and, that other religious or customary courts-whose power is limited to personal or family matters-may be established or given official recognition.*
- ✓ *Accordingly, the phrase “... institutions legally empowered to exercise judicial functions...” under Art 78(4) of the FDRE Constitution, is said to have been included to denote and encompass administrative tribunals such as the ‘Labor Relations Board’, ‘Tax Appeal Commission’, ‘Civil Service Tribunals’ and the ‘Board of Privatization Agency’.*

What about social courts?

- ✓ However, legally speaking, there seem to be ambiguity and imprecision, with regard to ‘Kebele Social Courts’ operating in Addis Ababa, Dire Dawa and in the Regional States.
- ✓ Thus, a broad interpretation of the provision is made so as to embrace them within the domain of Art 78 (4).

Why Judges are required to provide legal grounds in their decisions?

- ✓ The purpose that such a formal requirement furnishes is twofold;
 - a. it serves as a **practical guarantee** against the possible arbitrariness of the judiciary; and,
 - b. Most importantly, the party against whom the decision is passed; and, hence, affected, would get an **opportunity to know** the legal basis of the court and be able to effectively exercise his right of appeal.

Rules of Procedure Vis-à-vis Modes of Proceedings

What are the types of proceeding the basic grounds to distinguish between them?

- ✓ *the laws of procedural rules in any country chiefly adopt either the 'Adversarial' or the 'Inquisitorial' modes of fact-finding to the total, or, partial exclusion of the other; or, at times, an interplay of the two, where, of-course, one may flagrantly take over the upper hand.*
- ✓ The basic ground to differentiate is by the *role of the parties and the judge.*

What are the features of the adversarial proceeding?

- ✓ the most common feature are;
 - a) **The role of the parties:** the parties themselves (or represented by their advocates) shoulder the burden of initiating, shaping and fixing the scope of the litigation.
 - b) **'Factual methodology':** in contrast to the other style of adjudication, which employs some purely **theoretical reasoning** to reach at a conclusion. The underlying proposition of the system is that truth is most likely to emerge as a **bi-product of the vigorous combat between intensely partisan advocates.**
 - c) **Interest consideration:** The advocates are not supposed, at least as a matter of fact; to see the resolution of the case as a question of what might be best for the society as a whole. Rather, their ultimate goal is to see the possible disposition of the controversy in terms of their clients' best interest-taking a "win-at-all-costs" attitude.
 - d) **The Role of the Judge:** play a relatively **passive role.** Their function is limited to regulating the proper conduct (smooth flow) of process. Thus, known as **impartial umpire** to see to it that the **rules of the game are evenly and properly observed by the players.**

What are the common features of Inquisitorial Procedure?

- ✓ the common features are;
 - a) **Role of the judge:** procedure is self-expressive in that the judges can inquire deep into the merits of the case so as to be able to decide on what the real issues between the parties are.
 - b) **Role of the Parties;** Yet, true to this system, the real parties do have active role to play in initiating, shaping and fixing the scope of the litigation. However, relatively speaking the system envisages, **a more active role for the judges.**

N.B. *Accordingly, irrespective of certain arguments in the contrary, the basic material source of the Code is observed to be the 1908 Indian Code of Civil Procedure, Hence, one may plausibly*

propound that the Code was extensively influenced by and originated from the Common Law Tradition-to which the UK was (and still is) the typical representative.

Salient Features of the 1965 Civil Procedure Code

What are the distinguishing features of Ethiopian civil procedure code?

- ✓ The following distinguishing features of the code deserve special attention;The point here is that there is a contention as to whether such schedules should strictly be observed during actual litigation processes.
 - a. **Inconsistent prescriptions between the two versions of the Code In relation to the pleadings:** Art. 80(2) of the Amharic text make the use of the forms indispensably **mandatory**, while such a strict prescription is missing from the English version.
Surprisingly, Art 244(4) of the Amharic Code stipulates that non- observance of formal requirements cannot be a ground for a preliminary objection. This becomes, at times, a source of fierce conflict in the effective application of the provisions of the Code.
 - b. **Difficulty to interpret the inconsistency between Amharic and English version:** there are also blatant mismatches between the Amharic and the English versions. The master texts of the Code, being originally drafted in English, and, then, translated into Amharic, the inconsistencies are supposedly attributed to the Amharic mistranslations.
In such instances, some lawyers suggest that it would be profitable to consult the English version the primary source material; and, if accessible, the relevant provisions of the Indian Civil Procedure Code, the original source document of the latter.
 - c. **Different sources of substantive and procedural law:** Our substantive laws are essentially derived from the civil law legal system whereas the procedural law is from sources substantially influenced by the common law tradition. Thus, there are problems in the interpretation of different terminologies used.
 - d. **Absence of legislature intention based interpretation:** since the Code was not promulgated by the parliament (rather by decree), there are no documents containing legislative debates (“travox preparatory”) on the drafts of its provisions, there is no thing published, indicating the drafters intent i.e. the background policy explaining the contents of the legal rules and prescribing guidelines for interpretation.

Chapter Two

Judicial Systems in Ethiopia and Jurisdiction of Courts

What was the common features of Ethiopian judicial system in the Unitary Court Structure?

- ✓ Briefly stated, thus, before the end of the 19th century, there was no formally established and systematically institutionalized judicial structure in Ethiopia. It was thus only the 1931 ever written Constitution of the country that could safely be considered as marking the beginning of a new era in the establishment of the modern judicial system.
- ✓ the constitution establish;
 - a. the Supreme Imperial Court,
 - b. the High Court, and
 - c. the Provincial (Teklay-Gizat) Courts
 - d. the Awraja –Gizat Court,
 - e. Woreda-Gizat Court and
 - f. The Mikiti-Gizat Court were also subsequently instituted.

N.B. Nevertheless, as the Mikiti-Woreda Courts and the Teklay-Gizat Courts were later on devoid of their jurisdiction by subsequent laws, they were, abolished.

The Present Dual Court Structure

- ✓ The 1991 Transitional Charter, uprooted the trend in the country's constitutional history by marking the establishment of a new system-as a fore-state of the ethno-linguistic federalism.
- ✓ The subsequent 1995 FDRE Constitution, not only proclaim that, judicial power, both at the Federal and State levels, is vested in the courts but it also provides for the establishment of two sets of courts: one at the Federal and the other at the State level. see art 78.

Jurisdiction of Courts: Essential Elements

What is judicial jurisdiction?

- ✓ 'Jurisdiction' of courts, in this respect, *refers to the power of courts, to hear and determine a case; thereby, rendering a binding judgement.*
- ✓ Thus, *Judicial Jurisdiction refers to the legal competence of the courts of a particular nation or state to exercise a judicial power i.e., to adjudicate a law suit and render a judgment binding an individual, or his property involved therein.*

When judicial jurisdictions arrested?

- ✓ Normally arises *when there is a 'foreign element'* in a case appearing before a court of a given state.
- ✓ A case is said to have involved a foreign element, if either of the parties is a foreigner to that state or the transaction or property, which is the subject matter of the suit, is occurs or is situated outside of the territorial boundaries of that state.

If so, when a state possess a judicial jurisdictions?

- ✓ In most instances, *a court of a state is held to possess judicial jurisdiction if it has sufficient contact with either the defendant or property that is involved in the suit.*

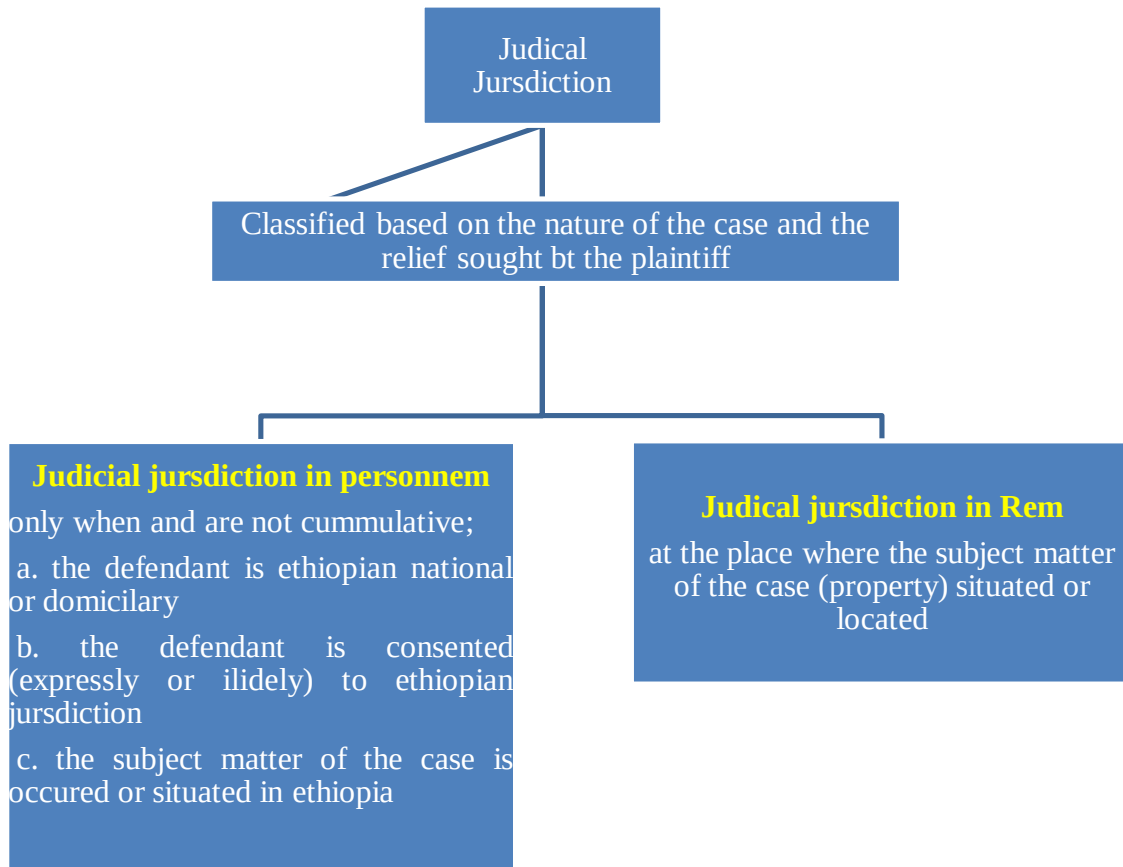
How a foreign judgments are enforced?

- ✓ In some instances, a court's judgement of a given country may be enforced in another country *on the basis of bilateral or multilateral treaties*. The need for *a concession of reciprocity is also the other factor in this respect*.
- ✓ By and large, however, *the court of a state to which a judgement is sent for execution will consider only whether the court that gave the judgement possessed judicial jurisdiction*. i.e., the court of the state in which the judgement is sought will not review the merits of the case rather it, merely, determines whether the court that rendered the judgement had the competent jurisdiction in that state itself.
- ✓ Accordingly, *the plaintiff (judgement-creditor) is not to file another suit on the merits of the case in that state; but, simply makes a formal application for the enforcement of the judgement and obtain execution against the judgement-debtors property in that country.*

Does Ethiopia has an independent law governing judicial jurisdictions?

- ✓ One may safely state that there is no, formally speaking, law in Ethiopia that specifically govern the issues of judicial jurisdiction. Moreover, though the conditions for granting permissions to the execution of foreign judgements are put forth by the Civil Code, the existence of judicial jurisdiction with the court that rendered the decision not expressly required as such.
- ✓ Instead, the Ethiopian courts ordered to, principally, identify the presence of any conditions stated under the civil procedure code (See, Arts 485-61).

1. Judicial Jurisdiction



What are the basis of classification of judicial jurisdiction?

- ✓ it is based on the nature of the action brought the type of the relief sought by the plaintiff, the grounds for exercising judicial jurisdiction are distinctively put as 'in Personam' (over a person) and 'in Rem' (over a thing) jurisdiction.

a. Jurisdiction in Personam

What does action against or in personam means?

- ✓ An action in Personam, is brought against a person, natural or legal, and seeking a relief against the person of the defendant, i.e., the claim is made for an order requiring the defendant to do or refrain from doing an act.
- ✓ A suit filed for damages, or/ and injunction would thus be an in Personam suit; and, the power of the court in this regard, needless to mention, is jurisdiction in Personam.

What are the essential requirements to assume judicial jurisdiction in personam in Ethiopia?

- ✓ On the grounds of the general legal principles, and the usual court practices, ***there are three requirements and these factors are optional or alternative grounds but not cumulatively fulfilled;***

i. Nationality or Domiciliary of Defendant

- ✓ *If the defendant who possesses either of such status is subject to Ethiopia's judicial jurisdiction even though the transaction which gave rise to the suit occurred outside of Ethiopia.*
- ✓ ***Here, it has to be noted that it is the defendant's status that matters; i.e., it is irrelevant whether the plaintiff is an Ethiopian national or, is domiciled here.***

How the nationality requirement is governed in Ethiopia?

- ✓ Pursuant to the pertinent legislations (both the FDRE Constitution, and the new proclamation that repealed and replaced the 1930 citizenship law), ***birth is the main mode of acquiring Ethiopian nationality.***
- ✓ By virtue of Art 6 of the FDRE Constitution, an Ethiopian national is any person of either sex whose-both or either-parent is an Ethiopian.
- ✓ *Thus, a person born of both Ethiopian parents or an Ethiopian mother or father will automatically acquire an Ethiopian nationality without any additional conditions attached therewith.* There is, of course, a procedure (known as naturalization) by which foreigners may acquire Ethiopian nationality.

What are the legal requirements to be Ethiopian domiciliary?

- ✓ On the other hand, Ethiopian domiciliary is one who, (See Arts 183-191 of the Civil Code)
 - ✚ *while not an Ethiopian national nor has otherwise acquired its nationality, has established the principal seat of his business and of his interests in Ethiopia*
 - ✚ *with the intention of residing in here permanently; or,*
 - ✚ *More realistically, for an indefinite period of time.*

How legal persons are subject to Ethiopian jurisdiction?

- ✓ *Just as physical persons are subject to judicial jurisdiction in the state of their nationality or domicile, legal persons (corporate bodies) are also subject to the courts of the state which created them.*
- ✓ ***Nevertheless, a foreign corporate body (created under the law of another state and/or situated elsewhere) would normally be subjected to the Ethiopian judicial jurisdiction with***

respect to suits arising out of its activities carried out here in Ethiopia.(See, Arts 545-549 of the Civil Code)

ii. The Doing of an Act

- ✓ *If the subject matter of the suit occurred in Ethiopia, an Ethiopian court will have judicial jurisdiction-even-though the defendant is a foreigner or not an Ethiopian domiciliary.*
- ✓ *Similarly, an Ethiopian court will have personal jurisdiction over a foreign defendant on a suit that had been concluded outside of Ethiopia but was performed here.*

iii. Consent of Parties

- ✓ *When a person undertakes an obligation to submit to the jurisdiction of the courts. Consent may be express or implied.*
- ✓ *It is said to be express if it is orally (verbally) made or written. The parties may make their consent part and parcel of the terms of the contract between the two or they may reduce it in writing after the conclusion of the main contract*
- ✓ *Consent can be gathered, by implication, from the behaviour of the defendant. It is when the defendant appears and starts defending himself without raising any objection on the grounds of judicial jurisdiction; he cannot, subsequently, repudiate his consent and challenge the jurisdiction of the court.*
- ✓ *Such an objection is, as a rule, deemed to have been waved if not raised at the earliest possible opportunity before proceeding with the trial/merits of the suit (See, Art 244(2) & (3) of the Cv Pr Cd)*

b. Jurisdiction in Rem

What does action against or in rem means?

- ✓ *An 'action in rem (latin term)' is, thus, one, essentially directed against property and the relief sought pertains to the property itself- without reference to the title of individual claims or specific person as such.*
- ✓ *Besides, the plaintiff does not seek such an order as binding the person of the defendant although an individual may be named as a defendant in the proceeding.*
- ✓ *judgement in rem settles the destiny of the res (property) itself (or of some interest therein) not merely as between the parties themselves; but, as against all whom it might concern or, briefly put, with reference to 'the entire world'; and, thus, binds all persons claiming an interest in the property in consistence with the judgement-even though pronounced in their*

absence

When Ethiopian courts have a jurisdiction on the claim against property?

- ✓ 'In rem' jurisdiction refers to the power of the court to pass a valid judgement against the property (movable or immovable; tangible or intangible) of the parties and not as such against the person of the parties themselves.
- ✓ *Such an action is established in the courts of the place where the thing i.e. the subject matter of the suit-is located. Consequently, it will only be the courts of the state wherein the property is situated that can, exercise in rem jurisdiction.*

2. Material /Subject-Matter Jurisdiction

What does material jurisdictions refers to?

- ✓ Material jurisdiction or subject-matter jurisdiction', *refers to the power of a particular court of a state to determine **the type or kind of a dispute involved in a case.***
- ✓ In Ethiopia, during the past regimes where the form of the government was unitary-the issue of determining the material jurisdiction of a court was relatively simpler. The reason here is that-as there was a single, and, vertically structured judicial system.

What are the essential issues to identify material jurisdiction in federal system of government?

- ✓ Specifically stated, there are basically three issues that need to be cleared from the outset;
 - a. Whether the case is not one falling outside the judicial power of ordinary courts.
 - b. A distinction has to be made horizontally between the Federal and Regional/States matters (jurisdiction).
 - c. Which level of court is competent, i.e., vertically from among a given structure to see a given law-suit.

What are the essential criteria's to identify material jurisdiction?

- ✓ Pursuant to the pertinent legal rules governing the area, there are two broad criteria commonly employed to determine the material jurisdiction of courts in Ethiopia. These are:
 - a. Subject Matter' jurisdiction and
 - b. 'Pecuniary' jurisdiction.

2.1. Subject Matter Jurisdiction (type of the case)

- ✓ We have to consider the following issues;

i. **Matters outside the Jurisdiction of Courts**

- ✓ Accordingly, in some instances, *regular courts are not to forthrightly rush into adjudicating every law suits brought before them. Rather, primarily such a court has to, make sure that the case instituted therein is not one of the nature made to fall partly or wholly outside the jurisdiction of ordinary courts.*
- ✓ This is basically meant to depict the fact that there are certain issues identified by law to be treated by other tribunals entrusted with delegated, quasi-judicial power-so as to decide on some conflicts related to administrative activities and functions of the government.
- ✓ *Accordingly, conflicts arising from the respective activities of these institutions will thus be within the primary jurisdiction of these tribunals. As a result, party may not directly file his case to a regular court from the outset-before exhausting all the available remedies in that system. Yet, an appeal is allowed to be taken to the regular court from the decision of these tribunals*

ii. **Federal Vs Regional Subject-Matter Distinction**

- ✓ There are two conceivable ways of looking at the issue under consideration in order to determine the respective competence of the Federal and Regional courts.
 - a. On the basis of the power-sharing method of the Constitution itself. (see art 80(1 & 2)
 - b. By looking at the problem on the basis of the more specific subsidiary law: the Federal Courts Establishment Proclamation, Proc, No 25/1996. see art 5

What are the basis of allocating federal courts power under the proc. 25/96?

- ✓ Art 5, enumerates the civil subject-matter jurisdiction of the Federal Courts. Moreover, in so listing, the proclamation employed three separate parameters so as to determine the material (subject-matter) jurisdiction of the Federal Courts on a given law-suit;
 - a. **The nature and status of the law on which the case is based**
- ✓ Categorises the type of the case on the ground of Federal laws vis-à-vis States' laws distinction. *That is, if the case is based on the Federal Constitution, Federal laws, or, international agreements (treaties), then, it falls under the Federal Courts' subject-matter jurisdiction; and is treated as such.*

If so, what are federal laws mean?

- ✓ Are laws which are enacted by the Federal law-making organs i.e. (the Federal legislature namely the HPR and the Federal Government-executive agencies) on matters that fall within the powers of the Federal government.
- ✓ Likewise, international agreements-as they are adopted by the Federal legislative organ, (HPR), they, too, are treated as Federal laws.

b. The status of the parties themselves

- ✓ If the parties to a suit are those specified or administered by the Federal laws, the power to entertain the case resides in the Federal Courts. To be more specific,
 - ✚ either or both of the parties to a law-suit is a federal organ or official (employee); or,
 - ✚ if it is between parties permanently residing in different Regional States; or,
 - ✚ If one of the parties is a foreign national, then it shall be considered by the Federal Courts.(See, Art 5(1)-(4) of Proc No 25/96).

c. The ‘place’ where the case arose

- ✓ In this regard, the two specified areas are Addis Ababa and Dirre-Dawa; that is, disputes arising in either of those places, would be within the competence of the Federal Courts-regardless of the identity of the parties-as in the earlier case.

d. The nature or type of the case itself

- ✓ Accordingly, the cases exhaustively specified under this category are:
 - ✚ suits involving matters of nationality, or,
 - ✚ issues of business organizations registered or established by the Federal Government; or,
 - ✚ those regarding negotiable instruments (such as, cheques, letter of credits, etc.), or,
 - ✚ Which relates to patent or copy rights, or, one based on insurance policy; and, an application for Habeas Corpus. (See, Art 5(5)-(10) of the Proc No 25/96)

Is there any instances whereby federal government has material jurisdiction on cases arises in state laws?

- ✓ has on the grounds of States laws:
 - ✧ Where the parties to the litigation are those listed under Art. 5(1)-(4) of Proc No 25/96;
 - ✧ In Addis Ababa or Dire Dawa (See, Art 80 of the FDRE Constitution and Arts 11(1) (b) and 14(2) of Proc No 25/96).
- ✓ *Consequently, one may argue that State cases are cases that arise on the cases of State Law and that are not categorized under Federal cases.*

Does art 3 (1) and (2) of proc no. 25/96 are contradictory?

- ✓ Even though, some say they are contradictory, we can say that there is no contradiction between articles 3(1) & 3(2) of the Federal Court Proclamation.
- ✓ This is because, while in articles 3(1) *the base for jurisdiction is the issue of litigation*, in articles 3(2), *the base for jurisdiction is the identity of the parties*, not the issue that they raise.
- ✓ *Therefore, what we can conclude here is, Federal Courts will have subject matter jurisdiction over cases arising from Federal Laws as well as on issues (though based on states laws) between parties who have been specified in Federal Laws.*

2.2. Jurisdictional Limits of Courts: Pecuniary Amount Vs Types of Cases

a. Pecuniary Amount: Federal Vs States' Courts Jurisdictional Limits

i. Federal Courts: General Vs Limited Jurisdiction

- ✓ The civil jurisdiction of the Federal First Instance and High Court are treated, under its Arts 11 and 14 of Proc. 25/96 respectively. *The two grounds the Proclamation employed to determine the jurisdictional limit of the Federal Courts are: the amount of money and the type of the case.*
- ✓ Accordingly, with aspect to the amount of money, while civil cases which involve an amount not exceeding Birr 500,000.00, are subject to the jurisdiction of Federal First Instance Courts
- ✓ Those, which involve an amount in excess of Birr 500,000.00, are entrusted to the jurisdiction of Federal High Courts.
- ✓ On the other hand, there are cases that cannot be valued in monetary terms; and, this is where the other ground comes i.e. The 'type' of the case-determining the jurisdictional limits of courts. Consequently, they are given to FFIC.

ii. States Courts: Original Vs Appellate Jurisdiction

- ✓ The jurisdictional limits of States Courts are determined based on the provisions of Art 13 of civ. pro code as follows:
 - ✧ The Woreda courts will have first instance Jurisdiction over claims that involve up to 5,000 Birr for movable properties, and up to 10,000 Birr for immovable properties;
 - ✧ State High Courts also handle cases that involve claims exceeding 5,000 Birr for movables and exceeding Birr 10,000 for immovable properties.

N.B. However, State Supreme Courts do not have first instance or original jurisdiction. That is all cases in State Courts must start either in the Woreda Court or High Court.

How courts determine the pecuniary amounts involved in the case?

- ✓ Gathered from the statement of claim of the plaintiff. As a rule, the plaintiff is expected to specifically describe the monetary value or type of the case with a view to describing that the court has jurisdiction over the case. Art. 16(2) see also (Arts. 226-228)

Is there exclusive jurisdictions of courts?

- ✓ Exclusive jurisdiction means that a jurisdiction given to the court irrespective of the pecuniary amount involved therein.
- ✓ In other words, the Federal High Court has exclusive jurisdiction in all cases mentioned under Art 11(2) of Proclamation No 25/96.

3. Local Jurisdiction

- ✓ Local Jurisdiction have to do with an area where a case shall be tried, or, in other words, take us to the specific court to which a law-suit is to be submitted; and, in effect allocate cases among the same level of courts (say, the Federal First Instance Courts) within a given court structure.
- ✓ *Moreover, the rules on local jurisdiction are framed in such a way as to primarily enable one to refer the case to a particular court convenient for the parties and their witnesses, particularly, the defendant.*

3.1. The Basic Place of Local Jurisdiction

Where is the basic place of local jurisdiction?

- ✓ the most relevant place, what might also be called the ‘basic place’, is, in simple and pure terms is the place where local jurisdiction lies unless it is prohibited by law or a court sitting in another place is authorized to assume the jurisdiction.
- ✓ Art 19(1) of the Code stipulates that the basic place of local jurisdiction lies with “***...the court of the place where the defendant actually resides or carries on business or personally works for gain.***”
- ✓ having said this lets discuss each elements of the provision herein under;
 - a. actually resides**
- ✓ Our Civil Code has envisioned resolving the matter by characterizing one of those places as a ‘principal’ residence, and considering all the remaining as ‘secondary’ ones.

- ✓ The primary residence is one in which someone stays more normally or more frequently, or for the longest period. Accordingly, *a person's primary residence would, thus, be the place where he actually resides for purposes of local jurisdiction-which probably is the place where it is convenient for one to defend a suit brought against him.*

b. carries on business

- ✓ The test of "...carrying on business..." is determined neither on the bases of the continuity or intermittence of the business, nor on the physical appearance or effort of the individual concerned.
- ✓ *Rather, it is the fact of owning interest in the business and enjoying profits therefrom, which matters most. This means, more specifically, having a share in the profit or the loss and a voice (some control) over the business is an important factor.*

What is the defendant not Ethiopian or reside outside Ethiopia?

- ✓ In such instances, Art 20(1) provides that the suit may be instituted in any court in Ethiopia where the plaintiff prefers; unless, of course, the suit relates to an immovable property of the defendant; in which case it is the court of the place where the property is located.

N.B. the 'legal persons', mentioned under Art 22(2) are somewhat different from those described under Art 22(1). Legal persons, which are stated under Art 22(1), are basically established to make profits; the ones under Art 22(2) are formed for non-profit purposes.

Why suit regarding immovable property are institutes at place where the property situated?

- ✓ The Article 25 provides that suits involving immovable property must be instituted at the place where the immovable property exists.
- ✓ The reasons for the rule are:
 - a) Such property cannot be transferred from place to place; it will be difficult for a court other than the court where the property is situated to view if it finds it necessary.
 - b) In cases where dispute is on boundary matters that may necessitate measurement of the boundary, or essential document about the property are found in the place where the property exists.
 - c) Where the case is defendant upon the testimony of witnesses, such witnesses probably reside at the place where the immovable is situated. Therefore, such suits must be instituted at the situs and not elsewhere.

3.2. Change of Venue (Transfer of Suit) and Removal of Judges

- ✓ there could be conditions whereby the place stated here above, as a place of local jurisdictions, may not be convenient for either or all of the litigating parties for certain reasonable grounds.
- ✓ The Civil Procedure Code has provided, under its Art 31, way outs to such problem. In this regard, there are two closely related legal practices: transfer of suits, or, change of forum, and removal of judges

a. transfer of suit

- ✓ In the ordinary course of the law, the transfer is to be ordered where there exists a problem with the proceedings in the court where the case is originally instituted. In accordance with Art 31 of the Code, there are three grounds that justify such transfer.
 - i. The first factor is when there is an allegation that a fair and impartial trial cannot be made in the court where the suit was instituted.
 - ii. A situation where a party contends that the court in which the case is pending cannot properly handle the proceeding since the case involves some question of law of unusual difficulty. That is to say the case is very problematic and it may give rise to some complicated issues of law which cannot be resolved by the court treating it.
 - iii. Where the court seized of the case is found to be inconvenient to the party so demanding.
 - iv. When a pleading submitted to a court is amended and this makes the case to fall under the jurisdiction of a higher court, the court that was holding the case shall transfer it to the higher competent court. see art 91 cum 31

N.B. In the final analyses, however, it has to be dearly noted that since the rule on the transfer of suits is an exception to the general principle, narrow interpretation should be adopted when the need arises.

b. Removal Of Judges

- ✓ A judge may withdraw or be removed from a bench essentially to achieve impartiality of the court. Unlike the transfer of suits, reasons that may lead to the removal or withdrawal of judges from a bench are listed down by Proc No 25/96.
- ✓ Pursuant to Art 27 of the Proclamation, if the judge:
 - has some relations to a party or an advocate; or,

- was a tutor or legal representative of a party; or,
- has some prior connection with the case; or,
- Has a pending case somewhere else with a party or advocate thereof; he shall withdraw as soon as he aware of those issues. Moreover, the reasons mentioned there are not exhaustive and any other sufficient reasons may be added to the list.

Conflicts of Jurisdiction: Priority, Pendency and Consolidation of Cases

Which judicial organ has the power to determine the conflict of jurisdiction between courts?

- ✓ In case where there is the conflict of jurisdiction between federal or state courts or within the same judicial structure, the power to adjudicate such conflict is conferred to Federal Supreme Court.

What are the mechanisms to resolve conflict of jurisdiction?

- ✓ With a view to resolving problems resulting from such circumstances, the Civil Procedure Code treats the matter through the rules of priority, pendency and consolidation.

a. Priority (see Art 7)

- ✓ The question of priority arises when a plaintiff institutes two or more suits on the same cause of action in different courts, *it will result in the harassment of the defendant to defend his case in both areas. Moreover; the two courts could give inconsistent judgments.*
- ✓ *As it can readily be observed from the provisions of the Article, the rule of priority takes into account the time of submission of the case to a court of law-whereby, the court in which the suit is filed first will have priority to consider the case; and, consequently, the second file in the other court shall thus be dismissed.*

b. Pendency (see art 8)

- ✓ As a matter of rule, no court shall try any suit in which the matter in issue is also directly and substantially in issue in a previously instituted suit between the same parties in another court in Ethiopia having jurisdiction. And serve as one of the grounds for preliminary objection as per Art 244(2) of the Code, whereby a party may oppose the second suit.
- ✓ *Thus, the court shall dismiss the suit or it may direct the parties to apply for consolidation.*

N.B. Ethiopian court is not prevented from entertaining a case that is already pending in a foreign court. (See, Art. 7 of the Cv. Pr. Cd)

c. Consolidation of Suits

- ✓ Where the claims of both parties are separate while the matter in issue in one suit is closely related to a suit pending in another court. (e.g claim for recovery of property and trespass on the same property).
- ✓ In such a situation, either party can make an application to a higher court that the cases be consolidated for trial under Art 11-whereby the higher court will direct one of the subordinate courts to try the case.
- ✓ *Consolidation is thus a procedure that is applied when two or more suits pending in different courts or the same court and between the same parties give rise to similar issues and are to be decided in different courts.*
- ✓ *In other words, where two or more suits which involve the same parties and similar issues in different courts or where there is a question of pendency, then, both suits will be consolidated under the procedure of consolidation.*

CHAPTER THREE

PARTIES TO AND DIMENSION OF SUITS

Parties to a Civil Suit: General Requirements

What is the essential requirement to be a party in a civil suit?

- ✓ *Any party to the civil suit in the first place, all parties participating in a civil suit should have capacity. see art 33(1)*
- ✓ Capacity is the power or ability to perform juridical act. Hence, capacity to sue or be sued refers to an individual's ability to represent his interest in a law- suit without the assistance of another.
- ✓ *Hence, incapable persons cannot be parties to a suit, and, thus, they cannot sue or be sued in their own names (see Article 33(1)).*

If so, what is the possibility for incapable person to be a party in a civil suit?

- ✓ Incapable persons cannot sue or be sued in their own names. Thus, their legal representatives shall represent them.
- ✓ *If one of the parties is found to be an incapable person, the court can, by its own motion or by the application of another party, suspend the litigation until a proper representation is made in accordance with the provision of the relevant law. see art 34(2)*

N.B. Incapacity is one of the grounds of preliminary objection specified under Article 244(2) of the Civil Procedure Code.

1. Party Plaintiff and Party Defendant

1.1. Party Plaintiff

What is the essential requirement to be party plaintiff?

- ✓ To be plaintiff, the first requirement is *to possess capacity to perform juridical acts* in general.
- ✓ The other requirement is that a person *must be the real party interest with regard to the particular claim or allegation he brings to a court of law against another party (vested interest)*. It means that the name plaintiff should possess the right required to be enforced under the governing substantive law. see art 33(2)
- ✓ *The requirement is not that the person is the one who will ultimately benefit from the successful decision made in his favor. It must be a person who has an immediate stake at a time of filing a case. At a time of filing a case, he should show that he has a vested interest in the subject matter of a suit.*

Why the law set vested interest requirement?

- ✓ The reason why the law attaches this requirement to party plaintiff is because
 - a. a civil suit concerns individual interest/ right. It is up to a concerned party only to either litigate or abandon a claim. Hence, no other person could decide to bring action for a real party with interest in a suit.
 - b. Another reason may also be to avoid defendant facing two suits over a single cause of action.

How we know the party plaintiff has a vested interest?

- ✓ The determination of whether a person appearing as plaintiff may have a vested interest depends on cases appearing before a court.
- ✓ *However, in all cases plaintiffs are expected to indicate a cause of action in their statement of claim as provided under Articles 222 and 231 of the Civil Procedure Code. It is from what is stated in plaintiff's claims that whether or not a plaintiff has a vested interest in a case can be decided.*

What will happen if a plaintiff who does not have a vested interest/ makes a suit?

- ✓ If an action is brought by a plaintiff who does not have a vested interest, *an opposite party should raise this as an objection on the grounds that a party bringing action is unqualified to act in the proceedings.* See Article 244(2) of the Civil Procedure Code.
- ✓ On the basis of the objection of the other party or by its own initiation, the court may order the substitution or addition of a party as a plaintiff.
- ✓ The court makes the substitution or addition if a suit is made by such plaintiff through a genuine mistake as per the rule under Article (40) 1 of the Civil Procedure Code.

What if a suit is made by a plaintiff deliberately to benefit from a claim in which he knows that he does not have a vested interest?

- ✓ The Civil Procedure Code does not provide any rule in this respect. The remedy in such a case is to dismiss his case and impose penalty on him for creating inconvenience to defendant, and he could also face criminal liability.
- ✓ This is to be inferred from a rule of Art 481 of the Civil Procedure Code and Art 452 of the Penal Code-which can extend to a suit made deliberately to obtain benefit without having a vested interest.

1.2. Party Defendant: Allegations

- ✓ To be considered as a defendant, there must be an allegation made against a person. see Article 33(3)
- ✓ *A person sued must be the one responsible for the wrongs committed and claims arising therefrom. Hence, if no claim is made against the defendant, he cannot be made a defendant in a suit. That is why article 224 of the Civil Procedure Code says that the statement of claim shall state specific relief that the plaintiff claims.*

Representation in Civil Suits: Types and Requirements

Should parties attend before court of law as a rule?

- ✓ Representation is allowed in civil cases and the reason why it is allowed is to be found in Article 65 of the Civil Procedure Code. *According to this Article, parties to a civil case need not appear in person to undertake activities in a court of law unless a court orders appearance in person.*
- ✓ *This means representation is a rule in most civil cases, and appearance in person is an exception. Appearance in person is limited to some cases where a court believes it is necessary for the proper determination of the suit.*

What are the Common forms of representation?

- ✓ The types of representation can be categorized generally into two;
 - a. A situation in which the representatives act for the interest of the real parties to a suit.
They act on behalf of real parties and do not have their interest at stake in a suit.
Specified under Articles 34, 57-64.
 - b. *A situation where the representatives represent the interest of others as well their own interest.* They serve two interests here. See Article 38 of the Civil Procedure Code.

1. Legal Representation: Types and Requirements

- ✓ The representation under Article 34 is known as legal representation. A legal representative represents persons under incapacity.
- ✓ *The reason why representation is made here is merely the incapacity of persons concerned to be parties to a suit.*

2. Representative Class Suits: Requirements

- ✓ Another kind of representation is provided under Article 38 of the Civil Procedure Code, known as representative class suit.
- ✓ *The reason why this representation is allowed is because a suit involves several persons and that it is inconvenient for all concerned to be parties. It is inconvenient for such a group of persons to proceed with a case individually.*

What are the essential requirements for this forms of representation?

- ✓ The requirements for this representation to apply are that;
 - a. **The parties should have the same interest in a suit;**
- ✓ To mean *that all the members of a group to be represented have a common interest, that all have a common grievance, and that the relief they demand is beneficial to them all.*
- ✓ *By the same interest, it means that as plaintiffs, they must demand the same relief against the defendant for the same wrong committed against all of them; as defendants they must be invoking the same defense against the plaintiff on the same cause of action.*
- ✓ An example where a representative class suit is allowed is where a local administrative body decides to give a residential area for investor and persons living there are to be transferred to another place.
 - b. **that they agree to be represented**

- ✓ A person not willing to be represented can bring his own separate suit. After representation is agreed upon by all concerned, any person on whose behalf a suit is filed or defended may apply to a court to be made a party. It means that he can intervene.
- ✓ *Once proper representation is made and the court accepts it, the parties represented are bound by a decision of a court.*
- ✓ *They are considered to have litigated through their representatives and, hence, they cannot bring a suit or be sued after a decision is made. The decision is res judicata against them.*

c. **That the number of parties is more than two**

3. Agents and Pleadors See Article 57

What is the essential requirement for this type of representation?

- ✓ A legal representative, agent or pleader of a person may make any appearance, application or act in or to any court. ***The requirement is that such representatives are able to answer all the material questions relating to a suit.***

Who are the representatives?

- ✓ A legal representative, according to Article 57, is a person authorized by operation of law to act on behalf of a party to a suit. This refers,
 - a. Representation to be made by organ of protection of an incapable person.
 - b. Representation by agent
 - c. The agent for the government is a person authorized to act for the government with respect to judicial proceedings (See Article 59).
 - d. Article 61 and 62 of The Civil Procedure Code provided agents for members of the Armed Forces and for prisoners.
 - e. A person can also be represented by his pleader/advocate.

Who is pleader?

- ✓ A pleader is a person who holds an advocate's license, and no person may appear in this capacity unless he holds such a license.
- ✓ A pleader has to produce his license together with a letter of authorization from a person who authorized him.
- ✓ The mere fact that a person has an advocate's license does not entitle him to represent any person unless he is authorized in writing to act on behalf of such person. (See, Art 63 of the Cv. Pr. C)

Joinder of Parties and Causes of Action

What to join?

- ✓ Here, the *concern is multiplication of parties and causes of action.*

A. Joinder of Parties

What are the merits of joining parties and cause of actions?

- ✓ the main advantages are;
 - a. Joining parties and causes of action *makes parties to pool their resources together and enables them to share costs of pursuing a suit.*
 - b. Relieves a burden of court in a sense that *a court resolves cases involving many persons or causes of action by a single suit.* Rather than treating related cases separately.
 - c. It *avoids the possibility of making conflicting decisions.* If suits that can be joined are tried separately, there is a chance of giving contradictory decision over essentially identical suits.

What are the demerits of joinder of parties and cause of actions?

- a. It *expands the scope of litigation* and consequently *causes delay of proceedings.*
- b. It *results in embarrassment of the defendant* and *makes him not to be able to properly defend himself.*

How we can strike a balance between the merits and demerits of joinder of parties and cause of actions?

- ✓ The rule under Article 221 of the Civil Procedure Code tries to strike a balance between these two conflicting interests toward joinder.
- ✓ *If joinder of causes of actions in a statement of claim results in a delay of proceedings or embarrassment of defendant, the court may order separate suits.*
- ✓ *In all other cases, joinder is, therefore, allowed so long as it does not bring about delay of proceedings or embarrassment to a defendant.*

Forms and Types of Joinder of Parties

What are the major forms of joinder of parties?

Joinder of parties appears in different forms;

- a. **joinder of plaintiffs:** Two or more plaintiffs bring action against a single defendant; or
- b. **joinder of defendants;** a single plaintiff brings action against two or more defendants or

- c. **Joinder of plaintiffs and joinder of defendants:** two or more plaintiffs file a suit against two or more defendants

What are the types of joinders of the parties in relation to the parties and the court?

- ✓ There are two types of joinder of parties.
 - a. **Permissive joinder of parties**
- ✓ *Here the motion of parties makes the joinder. The parties entitled to join can choose between joint actions or separate suits. They are not obliged to bring a joint action or defense.* See Articles 35, and 36(1, 2, 3, 4, 5, 6) of the Civil Procedure Code.

I. Joinder of plaintiffs (art 35)

- ✓ The first permissive joinder is provided under Article 35 of the Civil Procedure Code. Accordingly, Plaintiffs could bring a joint action if two requirements are met.

1st. **The right to relief must arise from the same transaction whether jointly, severally or in the alternative:** indicates that the claims of persons to join must be related in the sense that they should arise from the same source. Thus,

✚ **‘Same transaction’** it does not mean that the parties to join should have the same interest unlike the requirement under Article 38. The parties may claim different remedies. What matters here is the source of claim.

✚ **Series of transaction’** means a series of acts that cause damage to some person. For instance, a car hit electric poll which caused fire, which in turn, resulted in the burning of houses.

2nd. **There is a common question of law or fact that would arise if such persons made separate suits.** Means that all the parties share at least one common litigation interest in the form of an issue of law or fact. It refers to those questions of law or fact arising out of the claims in a particular case before the court.

II. Joinder of defendants, See Art 36

- ✓ There is one requirement that applies to the joinder of defendants, unlike that of joinder of plaintiffs. *There must be a common question of law or fact, if separate suits were filed against the defendants.*

Does question of law is always necessary in the joinder of defendants?

- ✓ Article 36(2) makes an exception to Article 36(1) in the sense that *there is no requirement of common question of law or fact. It applies where a cause of action emanates from a contract, including parties to a negotiable instrument.*

What if the plaintiff does not know who caused the damage against him?

- ✓ Article 36(5) provides an instance whereby the plaintiff does not know who caused the damage to him-from among several persons-and who is to pay him.
- ✓ *In such instance, he can join all of them. One of the defendants is liable to him, but he does not know who is to be ultimately held liable.*

What will happen if there is a mis-joinder or non-joinder of parties?

- ✓ Article 39 deals basically with the effects of mis-joinder or non-joinder of parties relating to a permissive type of joinder.
- ✓ *If the joinder is a permissive type, the mis-joinder or non-joinder does not result in the defeat of a suit. It means that a court does not dismiss a case for the reason that there is mis-joinder or non-joinder of parties.*
- ✓ *If a party is not joined or is improperly joined, the appropriate measure is not to dismiss a case but to drop a party improperly joined and demand substitution, and proceed with the parties before a court.*
- ✓ *If there is non-joinder, the court shall proceed with the case irrespective of such non-joinder. If there is improper joinder of defendants, the plaintiff should be given the option to drop the defendants improperly joined or to proceed with separate suits.*

b. Mandatory joinder (indispensable parties)

- ✓ In mandatory joinder, as its name itself implies, parties are under obligation to bring a joint action or defense. There is no choice given to parties other than a joint action or defense.
- ✓ Mandatory joinder applies to both plaintiff and defendant. Except for Article 36(3) and (4), which applies to joinder of defendants, the Civil Procedure Code does not have an explicit rule on mandatory joinder of plaintiff.
- ✓ This may be because mandatory joinder is a question of substantive law than procedural rules.

Who are subject to mandatory joinder?

- ✓ Mandatory joinder applies to certain categories of persons.

- a. **Persons required by substantive law to exercise their rights jointly at a time.** For example, joint owners, joint creditors or debtors, husband and wife over common property, etc.
- b. **Person who can be affected by a decision given in their absence.** This includes, for example, persons who are entitled to oppose the judgment under Article 358.

What will be the consequence if there is non- joinder of an indispensable party in case of joinder of defendants?

- ✓ If the mandatory joinder is related to a defendant, there is no problem in case there is a non-joinder of indispensable party defendant. In case of non-joinder of defendant, the case is not dismissed.
- ✓ The court shall order the joinder of such party, by issuing summon on him. He cannot refuse to be a named defendant. Thus, in case of non- joinder of a party defendant, the rule under Article 39 40(2) applies and the court makes him a party.

What will be the consequence if there is non- joinder of an indispensable party in case of joinder of plaintiffs?

- ✓ There is no clear provision dealing with a non-joinder of a party plaintiff and its effect. Article 40(2) can be considered to have an application to the non-joinder of an indispensable party plaintiff.
- ✓ This is because it says that a court may order joinder of a party as plaintiff or defendant if it believes that such party is necessary for the proper determination of a case.
- ✓ On the basis of this Article, if there is a non-joinder of a party plaintiff, the court may, by its own motion or upon application of one party, add him a party to a suit subject to his consent.
- ✓ It means that if there is non-joinder of a party plaintiff, the court should first secure his consent before adding him as a party plaintiff.
- ✓ This is because It is up to a party to file a suit or abandon it, since rights of civil matters can be abandoned.

What will happen if a plaintiff who is an indispensable party does not consent to be a party to a particular suit? Can the rule of Article 39 be of help here? Is the court entitled to proceed with the case in the absence of such party?

- ✓ That it is an indispensable party that is not joined and that the rule under article 39 is not applicable to such cases because parties are supposed to be joined as a matter of obligation.

- ✓ There are two options available to a court if an indispensable party plaintiff is not willing to join a suit as a named party plaintiff.

- a. **To proceed with the case regardless of the absence of such party**, since it is unfair to deny the parties who brought action the remedies they are seeking from a court for the sole reason that a party refuses to become a party.

Hence, rather than dismissing a case, the court shall make such party a defendant. This makes the court to proceed with the case, protects the parties who present a case before a court, and allow him to appeal, since he is appearing as a party defendant. As a defendant, he is merely on a record of court and does not have any responsibility to defend unlike a proper named defendant.

- b. **To dismiss a case if a party plaintiff refuses to be added as a party plaintiff**. This is because it is an indispensable party that is not joined and hence non- joinder in such instance should not produce similar effect as in the case of non-joinder of permissive party plaintiff.

Joinder of Causes of Action: Definition

What is cause of action?

- ✓ The Civil Procedure Code failed to define what a cause of action is.
- ✓ The term “cause of action” *can be equated with the right of action or legal right forwarded by facts relied upon by the plaintiff. It means that it is related to the nature of the injury alleged to have been suffered.*
- ✓ *Here, the focus is on the harm against a person than the acts that caused the harm; such as, breach of contract, body injury, etc.*
- ✓ *It can, on the other hand, be defined by the facts or occurrences that give rise to a claim for relief without particular reference to the substantive law to be applied, or the nature of relief sought.*

When parties are allowed to join cause of action?

- ✓ Parties are allowed to join as many causes of action as possible *so long as joining of causes does not bring about delay of proceeding or embarrassment to a defendant.* see art 221
- ✓ Parties are allowed to join even unrelated claims. (A plaintiff could join cases over contract with tort and bring a single action against a defendant.) The same applies to parties entitled to join. See Article 217.

Does parties can always join unrelated cause of actions?

- ✓ The exception to this rule is provided under Article 218, which provides that *claims for the recovery of immovable property may not be joined with other kinds of claims except those involving such property.*
- ✓ Another exception *is on a claim by or against an executor, administrator, or heir in his representative capacity cannot be joined with a claim by or against him in his personal capacity.*

Interventions: Conditions and Types

What is intervention and is it similar with joinder of parties?

- ✓ *Intervention is a mechanism by which a party is brought into a pending case to present a claim or defense. However, joinder of parties comes in to picture before or at the beginning of the suit.*

What are the common forms of intervention?

- ✓ There are two types of intervention.
 - a. Intervention by third party (see Article 41)**
- ✓ A party who wants to intervene shall file a written application in which he is expected to state reasons justifying his intervention.
- ✓ *The application shall be filed at any time before a decision is given. To intervene, a party must be interested in suit between other parties. It is this requirement that justifies a person's intervention in a suit.*

What is the phrase interested in a suit between other parties mean?

- ✓ Means a party's interest that is to be affected. *It determines whether an intervener gains or losses by the direct legal operation of the judgment to be rendered in a suit between other parties. Unless a party gains or loses something, he may not intervene.*
- ✓ Hence, *intervention is allowed if it is requested by an indispensable party.*

What is the effect of intervention on the proceeding?

- ✓ If an application for intervention is granted, *the proceedings are suspended until the original parties have been served with a copy of the statement of a party who is allowed to intervene.*
- ✓ The effect intervention produces is *that a decision given on a case also binds the intervener.*
 - b. Intervention by Public Prosecutor (mandatory intervention) (see Art 42)**

- ✓ The Public Prosecutor is under obligation to intervene, if parties concerned in such types of suit have initiated a suit.
- ✓ Substantive law prescribes all of the cases demanding the intervention of the Public Prosecutor. *Cases related to civil status, incapacity, marriage and bankruptcy are cases that give rise to the intervention of the Public Prosecutor under Article 42.*

Third-Party Practice [Impleader]: Purposes, Requirements and Consequences

When the third party practice is applicable? Who shall demand it?

- ✓ *It is the procedural device enabling the defendant in a lawsuit to bring into a suit an additional party who may be liable for all or part of the original plaintiff's claim against the defendant.*
- ✓ It is a mechanism by which a defendant brings into a suit a third party on the ground that such third party covers or shares the whole or part of claim of plaintiff. *It is initiated by a defendant.*

What is the purpose of third party practice?

- ✓ *To settle claims involving the same cause of action/ transaction in a single suit.*
- ✓ *Avoiding separate suits over the same cause of action/transaction.*

Is it mandatory for the defendant to join third party impleader?

- ✓ However, the defendant is not under obligation to bring a third party into a suit. *It is entirely optional and that the defendant may claim against the third party in a separate suit. That is why Article 43(1) says "may".*

What are the essential requirements to apply third party practice?

- ✓ the requirements are found under Article 43;
 - The defendant shall demand a court for the third party practice in his statement of defense.** In his application, the defendant is supposed to indicate the reasons why he demands the intervention of the third party.
The reasons provided by defendant must indicate that he is entitled to contribution or indemnity from such third party. It is either of these two relationships only that could cause the intervention of third party.
 - The defendant should mention the extent of contribution or indemnity to be made or covered by such third party.** It means that the defendant shall state the amount of indemnity or contribution of the third party.

What is the effect of the appearance and non- appearance of third party practice before court of law?

- ✓ Once he is ordered to be a party, he proceeds like a defendant in a normal action. He can make a counter claim or set-off against the original defendant (called third party plaintiff.)
- ✓ *If the third party fails to appear on the date he is supposed to appear, he is deemed to have admitted the existence of contribution or indemnity between him and the defendant. His mere absence amounts to admission of such relation.* See article 76.

When the defendant should demand the third party practice?

- ✓ The application for third party practice is subject to a time limit. *The defendant should raise it as soon as he appears before a court to make a defense against a claim of the plaintiff. It means that he should file an application during the first hearing of a suit.*

What does indemnity or contribution mean?

- ✓ **Contribution** refers to the situation where more than one person has committed the same wrong against the plaintiff or has the same obligation to him.
 - ✚ *Joint creditors, joint debtors, joint owners, etc. share liability and, hence, there is a contribution relationship between/among them.*
- ✓ **Indemnity** refers to the situation whereby a party who is to pay a claim is entitled to recover the amount to be paid from another party or wholly.
 - ✚ *Contract of insurance against liability, agency and principal relation...*

Change of Parties

- ✓ In civil suits, there is a possibility that others can replace the original parties upon death of one of them. This is not the case with criminal suits.
- ✓ However, in civil cases death of one of the parties does not automatically cause the termination of a suit. There is a possibility that others can replace the deceased party and the suit continues. This is possible if the right to sue survives. Article 48(1)
- ✓ *There is no change of parties if the court concludes the hearing of a case and adjourns the case to make a decision even if one of the parties dies as provided under Article 53.*
- ✓ According to the draft Civil Procedure Code, the change of parties may take place if one of the parties to a pending suit assigns the subject matter of the suit to another person.

CHAPTER FOUR
PLEADINGS AND PRE-TRIAL PROCEEDINGS
Pleadings Definition and Purposes

What is pleading?

- ✓ Pleadings mean all formally written statements filed to a court of law by parties to a suit with respect to their respective claims and/or defenses.
- ✓ The Ethiopian Civil Procedure Code does not define pleadings in a direct way. However, it contains, under Article 80(1) formally written statements that constitute them, such as statement of claim, statement of defense, memorandum of claim, appeal, etc;

If so, what makes pleading different from other documents that contains statements?

- ✓ pleading shall or must be the ones (see art 80 (1))
 - d. **That initiate proceedings in a court of law:** A document is said to originate proceedings in a court of law if it is made with a view to getting enforcement of right or claim. Thus, any document that does not set in motion proceedings in a court of law does not amount to pleading.
 - e. **Make replies thereto:** Thus, any document that does not make a reply thereto does not amount to pleadings.

E.g. Statement of claim and memorandum of appeal are some examples of pleadings that originate proceedings in a court of law; and statement of defense is one that makes a reply to a statement of claim.

What are the purposes of pleadings?

- ✓ Pleadings serve various purposes. The following are the main ones.
 - a. **Notice of the suit to the defendant:** to enable him to prepare his defenses accordingly.
 - b. **Provide a summary of the claims and defenses of parties to a court:** which enables a court to frame the appropriate and relevant issues that need decision.
 - c. **Fix the issues to be decided, and to limit the scope of litigation:** between parties and determine the evidences to be used by the parties.
 - d. **Guide the parties and the court in the conduct of cases.** A litigant cannot prepare for trial unless he has been informed adequately of the opponent's contentions.
 - e. **They try to expedite litigation:** This is particularly realized when the rules on them are employed properly by parties and the court.

General Pleading Rules: Requirements and Effects of Non-Compliance

What are the requirements of pleading to be admitted by the court?

- ✓ There are certain requirements that pleadings should fulfill in order that a court admits them.

The requirements relate to their preparation, format, and content.

- ✓ *They can be divided into technical and legal ones.*

What are the technical requirements?

- ✓ *Technical requirements relate mainly to the preparation and format of pleadings.* The technical requirements are provided under Articles 80(2), 222, 223, 234, 327-330, etc.

- ✓ The technical requirements include the following.

A. They shall be handwritten in ink, printed, or typewritten

- ✓ According to art 80(2) it shall be written on the prescribed paper. Thus, Pleadings can be written by using ink or can be type written or printed by a computer.

B. They shall be prepared in accordance with the form prescribed by the Code

- ✓ Shall be in accordance with the sample provided at the back of the code. See art 80 (2)

C. They shall be made as concise as possible and contain a statement of material facts

- ✓ Material facts on which a party relies for his claim or defense.

- ✓ *By a concise statement of material facts is it mean that:*

- ✓ *They shall state what is demanded in clear, precise and plain language.*

✚ *Legal provisions and arguments shall not be incorporated in pleadings.* This is because the purpose of pleadings is to furnish the court and the party with information as regards the facts of a case. Hence, it is the business of a court to look for the relevant provisions of the law applying to facts stated by parties.

✚ *The parties should not include issues of evidences in pleadings.* Facts as regards evidences are to be raised at a separate stage, which is the trial.

D. They shall be verified (See Article 92(1))

- ✓ The verification is made by signature or mark as the case may be. *By verification it is mean that facts alleged in the pleadings are true and correct. If the facts are found out to be false allegations, the party is held responsible.*

- ✓ Alleging false statements is a crime punishable pursuant to Article 452 of the Criminal Code. Verification can be made by a party himself or by anybody else

E. They shall be signed (See Article 93)

- ✓ Every pleading shall be signed by the party or his pleader, if any, or where a party is for good cause unable to sign, by any other person duly authorized by him to sign the same or to sue or defend on his behalf.

F. That annexes must accompany some pleadings (see art 223 and 234)

- ✓ Annexes as provided under Articles 223 and 234 shall accompany, for instance, a statement of claim and statement of defense. The same is true for petitions and applications filed for special proceedings that are to be accompanied by affidavit.

What measure can the registrar take if one of these requirements is not complied with?

- ✓ The measures taken by the register are found under different provisions of the Civil Procedure Code. For instance, the registrar can reject a statement of claim as provided under Article 229.
- ✓ This Article does not indicate what the registrar should do if a statement of claim is not signed. If it has not fulfilled the requirements that are checked by the registrar, it can be rejected.

What will be the effect/consequence of rejection of pleadings by the registrar?

- ✓ Rejection by the registrar does not prohibit a party from bringing a fresh pleading. The rejection by the registrar means that there is an error in the technical requirements of pleadings, and if the party corrects the defects, he can submit fresh pleading on the same cause of action. See Article 232

Major Types of Pleadings

1. Statement of Claim: Requirements and Contents

- ✓ A pleading submitted to a court by plaintiff. It is also known as a complaint. The technical requirements we discussed earlier are applicable to a statement of claim.
- ✓ In addition to these requirements, a statement of claim shall contain certain items that are listed under Article 222 of the Civil Procedure Code.

What are the main parts of statement of claim?

- ✓ It has four elements or parts;
 - a. **Caption:** the plaintiff must state the name of the court in which the suit is filed, the title of the suit, and the names of the parties including their description and address. If the plaintiff is under disability, this shall be stated; if the plaintiff is bringing action in a representative capacity, this shall also be stated.

- b. **Statement disclosing a cause of action:** shall state the facts constituting a cause of action and when and where it arose. The presence of statements showing cause of action is considered to be the legal requirement to be met by the statement of claim, as provided under Article 231 of the Civil Procedure Code.
- c. **Jurisdiction:** Once the court has established that a statement of claim disclosed a sufficient and lawful cause of action, it then examines whether or not it has a jurisdiction over a case. The plaintiff must allege facts showing that the court has jurisdiction as provided under Article 231.
- d. **Relief:** The statement of claim shall state the demand for the relief to which the pleader believes he or she is entitled to. See Article 224.

N.B. If the statement of claim fulfils all the technical requirements, and that there is no reason for rejecting it, the registrar shall proceed as per Article 230. See Article 230.

What is the base for assessing court fee?

- ✓ The court fee to be paid depends on the value stated in the statement of claim. *If the value of money is stated, a certain fixed percentage is imposed.*
- ✓ *If the value of money is not stated, the court fee to be paid is 25 birr. This occurs when the type of suit is not assessed in monetary terms.*

2. Statement of Defense: Purposes and Contents

- ✓ A pleading produced by the defendant. It is the pleading that contains material facts on which the defendant relies for his defense. The statement of defense is subject to the rule under Article 80(2) and 223.

What are the main parts of statement of defense?

- ✓ The statement of defense has mainly two parts.
 - a. **Caption:** in which the defendant is supposed to state the name of the court to which he submits his defense, and the number of the suit.
 - b. **The statement showing the points of defense:** In this part, the defendant is expected to raise affirmative grounds of defense, the defendant can raise any ground of objections to a suit. In addition, the defendant can raise a counterclaim or set off against the claim of the plaintiff.

Can the defendant defend the claims of the plaintiff in general terms?

- ✓ In stating his facts of defense, *the defendant must respond to each allegation of the facts made in the statement of claim whether he admits or denies them. The denial he makes must be put in a direct manner.*
- ✓ Thus, *Evasive denial does not amount to a defense under Article 235 rather it amounts to admittance.*

What is evasive denial?

- ✓ *Evasive denial is a denial in general terms. For instance, saying that, “I am not responsible or I am not liable” is considered to be an evasive denial.*
- ✓ However, *such defenses are not considered to be admission if they are made by persons under disability as provided under Article 235.*

What if the requirements for statements of defense are not fulfilled?

- ✓ The court can reject the statement of defense if it does not sufficiently fulfill the requirements it is supposed to comply with.
- ✓ The same rule under Article 229 shall apply to the rejection of statement of defense. See Article 238.

What is the effect of rejection of statement of defence?

- ✓ If the statement of defense is rejected, the court shall proceed with the trial of the case. The rejection does not mean that the case is to be decided for the plaintiff. art 238 (3)
- ✓ This is because even if it is rejected, the defendant could defend himself orally under Article 241.

Effects of Failure to Plead

What is failure to plead mean?

- ✓ A party pleading is supposed to plead all the claims arising from a single cause of action.
- ✓ Failure to plead *means that the plaintiff omits some facts he could have alleged.*
- ✓ The remedy for failure to plead at the beginning is to request an amendment of pleading. In the absence of permission to amend the pleading, the plaintiff is not allowed to raise new issues at a trial and introduce evidence unless the court frames issues by its own motion using the power given to it under Article 252.

When the question of failure to plead take in to effect?

- ✓ Failure to plead produces effect if the defendant raises it. However, if the defendant fails to object to a new issue raised by the plaintiff at a trial, it means that he consents to the trial of that issue.

Alternative and Subsequent Pleadings

What is alternative pleading?

- ✓ *An alternative pleading is optional grounds of claims or defenses relied on by a party. It is a pleading that aims at maximizing the grounds of claim or defense.*
 - a. **Alternative pleading by the defendant:** As per Article 237, the defendant may state different and separate grounds of defense in a single statement of defense. There is no limitation as to the ground of defense that is invoked by the defendant.
 - b. **Alternative pleading by the plaintiff:** Article 224(1) states the application of alternative pleading to the plaintiff. The statement of claim shall state specifically the relief which the plaintiff claims either simply or in the alternative...

N.B. *Alternative pleading does not mean, for example, that the plaintiff is entitled to double recovery for the same harm. He is merely basing his claim on optional grounds in order to maximize such claims.*

What is subsequent pleading or further pleading?

- ✓ It means pleading again on the same issue on which the pleading already been made.
- ✓ *The procedure is that once the court fixed a date for the hearing of a suit and conducted a pre-trial proceeding, it shall proceed to a full-scale hearing of a suit since the pleading stage is completed.*
- ✓ *However, further pleading is allowed in certain instances before the trial of a case. This is provided under Article 239.*

When further pleading ordered?

- ✓ Further pleading is allowed *when the statement of defense contains counter-claim or set-off against the claim of the plaintiff.*

If so, further pleading is mandatorily ordered or is optional?

- ✓ The obligation imposed on a court is to ask the plaintiff as to whether he wants to reply to the defendant's claim.
- ✓ If the plaintiff does not want to respond to such counter claim or set off, the court should not order further pleading to be made by the plaintiff.

Why further pleading is necessary?

- ✓ When the defendant raises counter claim in his statement of defense, he becomes plaintiff. This is because he is raising a new claim against the claim made by the plaintiff.
- ✓ That is why the rule under Article 215(2) says that the defendant shall pay court fee. Article 215(2)

If so, does it mean the suit is entertained on the same trial?

- ✓ The claim raised by way of counter claim can be filed as an independent suit. That is also why the defendant shall pay court fee under Article 215(2).

Amendment of Pleadings

Why amendment is necessary?

- ✓ *Amendment of pleading presupposes that a technically and legally sufficient pleading has already been filed and that it is found to be defective in terms of what has been claimed or stated.*
- ✓ Thus the amendment is allowed;
 - a. To rectify defects in pleadings.
 - b. If allowed, an amendment introduces a modification to the content of the pleading already submitted to a court. See Article 91 and 251.

When parties shall request for the amendment?

- ✓ A party can request amendment at any time before a court renders decision. So long as it is necessary to determine the real dispute between the parties, it can be demanded and allowed by the court at any time.

Grounds and the Process

Who shall initiate the amendment of the pleading?

- ✓ The amendment is ordered by the motion of a court or by the application of a party.
 - a. **Amendment by the court:** it should be limited to exceptional cases *where the error in pleading is likely to affect the substantive rights of a party.*
 - b. **Amendment by the party:** In other cases, the court should order amendment on the basis of the application of a party.

N.B. According to Articles 91 and 251, the amendment is made when it is necessary for the purpose of determining the real issues in dispute between the parties. This means that the amendment has a bearing on deciding the issues between the parties.

Effects and Related Issues

Which approaches Ethiopian laws follows in the amendment of pleading? (Liberal or restrictive)

- ✓ Amendment brings into picture the consideration of two interests.
 - a. **It causes delay of proceedings.** This is because if it is permitted, the proceedings will start as a fresh one.
 - b. **Protects a party from losing his substantive rights** or being affected as a result of pleading error.
- ✓ The phrase in Articles 91 and 252, which says “*necessary for the purpose of determining the real question in dispute*” aims at striking a balance between these two interests.
- ✓ Another factor for striking such a balance is the imposition of damage on a party who requested the amendment of pleadings.
- ✓ *In trying to strike a balance between these two interests the tendency in most legal systems is toward allowing amendment. It means that there is a liberal approach toward amendment and that the request for amendment should be taken into account in liberal manner that permits amendment.*

Is an amendment allowed to produce new evidence that was not originally annexed to a pleading?

- ✓ Courts prohibit in practice the amendment for the reason that the introduction of new evidences does not fall under Article 91(1) and that there is a separate procedure on the production of evidences.
- ✓ Hence, the court said that the introduction of new evidence could not serve as a ground for the amendment of pleading.

Pre-Trial Proceedings

Who is responsible for the Issuance of Summons?

- ✓ The authority to issue summons is invested in either the judge or the registrar of a court. Either the Registrar or judge can sign on it and cause it to be sent to a defendant. See Article 94(3).

- ✓ If the number of defendants is more than one, the summons shall be issued and served on each defendant.

Modes of Service

Who shall serve summon to the defendant?

- ✓ After summons is issued, it is collected from a court and served on defendant by the serving officer.
- ✓ *To be a serving officer, the only requirement is the authorization of a court. Any person authorized to serve summons can be a serving officer* (usually the plaintiff in practice). See Article 95(1)

What is the effect of failure to serve summon in due time?

- ✓ The Civil Procedure Code places the plaintiff who acts as a serving officer under obligation to serve summon on defendant properly, or otherwise faces a serious consequence. See Article 70(d) of the Civil Procedure Code.

What are the major modes of serving summon?

- ✓ The mode of service of summons used determines its legal sufficiency. Service is legally *sufficient if the mode of service used is reasonable under a given circumstance*.
- ✓ the major forms are;
 - a. **Personal service:**
 - ✓ When it is received by the defendant himself from the hands of a serving office. This mode amounts to the general rule on service of summons. Article 95(3)
 - ✓ This means that so far as possible, summons shall be served on a defendant by this mode in all cases. Personal mode of service is the best mode of service since the summons is actually handed over to the defendant himself.
 - ✓ It is when it is practically impossible to use personal service that other mode of service is to be used.

Does always the defendant shall receive summon to call personal service?

- ✓ No, when summon is received by the following person it is assimilated to personal service by law;
 - ✚ *When summon is served on the defendant's agent who is authorized to accept service, the service on agent shall be as effectual as service on the defendant in person. Article 96(1).*

- ✚ *When summon is served on the defendant's pleader / advocate, the service is considered to be duly served on the defendant himself. Article 96(2).*

b. **Constructive Mode of Service:**

- ✓ This mode includes the following types of service.

- ✚ When the defendant does not reside within the local limits of a court's jurisdiction but has an agent who carries business on his behalf, service can be made on the agent. The agent referred to here is not authorized to receive summons unlike in the mode of service we explained above. See Article 99.

- ✚ When summons is served on an agent in charge of immovable property. This service is possible if the defendant cannot be served personally and that he does not have agent empowered to accept service. This service is applicable only if the suit relates to immovable property see Article 100.

- ✚ Services to the adult member of defendant's family. This type of service is used when the defendant cannot be found for the service of summon and that he does not have agent to receive summon. Article 101.

c. **Substituted Mode of Service.**

- ✓ This mode of service is considered to be the least effective mode of service. It is the final mode of service used when all other modes of service are not applicable.
- ✓ This mode of service includes service by affixing a copy of summons in public areas, publication in newspaper, etc.
- ✓ It is a mode used where all other modes cannot be applicable. This is implied in the rule under Articles 103 and 105. If the serving officer cannot serve, he shall return it to a court. Then the court orders a substituted mode of service.

N.B. *The serving officer is under obligation to request the person served to sign an acknowledgment that he received the summons. The person served must, in his part, sign an acknowledgement of service. See Article 102 (1) and (2)*

What if a person served refuses to sign an acknowledgment?

- ✓ The court orders a fresh summons or substituted service or the court may consider that the person is properly served and proceeds with the case.
- ✓ This is when the serving officer returned the summons to the court and produced an affidavit as to the facts that prevented him from serving the summons. See articles 103 and 105(2).

Effects of Non- Appearance of Parties

Shall parties appear in person?

- ✓ *On the first day of the opening of a suit, parties need not appear in person unless the court demands it. If the court orders appearance to be in person, but a party fails to appear in person, it is treated that such party makes no appearance, even if someone appears on his behalf. See art 69(2).*

What if a party fails to appear?

- ✓ The effects of non-appearance depend on a party who fails to appear and on whether or not the summons is duly served on the defendant.
- ✓ *If both parties (plaintiff and defendant) fail to appear on the date fixed for the first hearing of a suit, the court shall strike out in fresh suit and. dismissed in appeal. See Article 69(2)*
- ✓ The rule under article 69(2) is a mandatory provision. Hence, the court does not have any discretion to make an order other than striking or dismissing a case if both parties fail to appear.

What if the defendant appear and the plaintiff failed to appear?

- ✓ *When the defendant appears but the plaintiff fails to appear the court shall dismiss a case. The only question put to the defendant in case of non-appearance of plaintiff is whether or not he admits the claim of plaintiff.*
- ✓ If he admits, the court makes a decision for plaintiff on the basis of such admission. If he denies, the court shall dismiss the case. See Article 73.
- ✓ The defendant should not be expected to defend himself on a claim of plaintiff in the absence of the complainant.

What if the plaintiff appear and the defendant failed to appear?

- ✓ When the plaintiff appears but the defendant fails to appear, the measure to be taken by the court depends on whether or not the summons has been properly served on the defendant. thus;
 - a. If upon examination the court finds, out that the summons has been duly served on the defendant, the suit shall be heard in the absence of the defendant. See Art 73(a) known as ex parte hearing.

- b. If the court proves that summons was not duly served on the defendant, the court orders the issuance of second summon on him.
- c. Summon is served but the defendant does not acquire sufficient time to prepare his defense.
- d. But if the summons is not served on the defendant owing to the plaintiff's negligence in serving summons, the court may adjourn the hearing of a suit or may strike out if it is a fresh suit or dismiss it if it is a case on appeal. See Article 70(d).

N.B. *In ex parte hearing, it does not necessarily mean that a case is to be decided in favors of the plaintiff and against the defendant. The court considers his claim and looks at his evidence. If he has a valid claim, it is decided for him; if he does not have a valid claim, it is decided against him.*

What is default judgment?

- ✓ When a third party defendant (under Article 43) does not appear, the rule under article 70(a) does not apply.
- ✓ *In case of non-appearance of third party defendant, the court decides that he has admitted the claim of defendant. The mere non-appearance of such party amounts to an admission of the existence of contribution or indemnity relations alleged by plaintiff.*
- ✓ *This kind of judgment is known as default judgment. It is a decision based on the sole reason of absence of third party defendant.* It is provided under Article 76.

What measure can a court take if the defendant who cannot appear on the first day of hearing of suit appears on the day fixed for the next hearing of a suit?

- ✓ See Article 72 of the Civil Procedure Code.
- ✓ The fate of the defendant who could not appear on the opening of the suit depends on the presentation of good cause by him. If he shows good cause, he is permitted to defend himself.
- ✓ The English version of the Civil Procedure Code is not clear as to whether or not the proceedings undertaken by a court on the first day would be set aside if good cause is shown. This is because it says *that the defendant is heard as if he appeared on the day fixed for his appearance. Since this causes delay of proceedings, the court can impose costs on the defendant for causing delay of proceedings.*

- ✓ *If the defendant convinces the court that he is prevented from appearing before a court for good reason, the case will be heard as a fresh and for this reason costs can be imposed on him for becoming a cause of delay of trial of a suit. This is the rule clearly provided by the draft Civil Procedure Code*

What will be the fate of the defendant who could not show good cause to a court for his non-appearance on the day fixed for the first hearing of a suit?

- ✓ The Civil Procedure Code does not have an express rule on this. The court has two options to decide on this issue.
 - a. To prohibit him from participating in a suit at all since he does not have good cause for his previous non-appearance, which means that he is indifferent to defend himself. This is implied from Article 72 itself.
 - b. To allow him to defend himself from where the proceedings begin on the next hearing of a suit. It means that he is considered to be present during the first hearing of a suit. He is not entitled to do what he could have done on the first hearing of a suit. e.g. no objections are allowed.

N.B. The rules on non-appearance of parties apply to any proceedings, be it first hearing, full-scale hearing, review, execution, and etc.. See Article 32(1).

What does it mean by good / sufficient cause?

- ✓ There is no definition of what is mean by ‘good cause’. The determination of what amounts to good cause is subjective and depends on a case-by-case consideration of circumstances.
- ✓ *It needs to be interpreted narrowly. This is because if it is interpreted broadly, has a potential to bring about delay in the trial of a suit.*

What are the effects of non- appearance of parties?

- ✓ The measure taken by the court can *either be dismissal or striking out of a suit*

	Measures on non-appearance of parties		
	Striking out of suit	dismissal	
Grounds to take measure	✓ when both parties fail to appear (Art. 69), and ✓ When the plaintiff committed default in serving summons on the defendant (Article 70(d).	✓ When the plaintiff fails to appear but defendant appears; ✓ when both parties fail to show upon appeal; and ✓ When an appellant is proved to be in default in serving summon on respondent (see Articles 69(2), 70(d), 73).	
The effects of the measure	✓ it does not prevent a party from filing a fresh suit on the same cause. and The consequence it entails is payment of another court fee ✓ A plaintiff can even be relieved from paying a court fee if he shows the court that he was not able to appear because of sufficient good cause. ✓ If a case is struck out, it is considered as if it were not filed at all to a court.	✓ The plaintiff is prevented from bringing a fresh suit on the same cause of action. ✓ He cannot pay a court fee and proceed with a suit. ✓ The dismissal leads to a loss of right to bring action. Unless the dismissal is lifted by a court of law, following the showing of good cause, a plaintiff cannot bring a fresh suit. (<i>Shall be within one month from the date an order is made by a court to dismiss the case.</i>) ✓ The defendant in whose absence a case is heard and decided can also request the setting aside of ex parte decision or default judgment. He could apply within one month of the day he became aware of such decision by showing the good cause. See Article 78(1)	